



Form 12 – Application for reinstatement

Industrial Relations Act 2016, sections 317
Industrial Relations (Tribunals) Rules 2011, rule 152


INDUSTRIAL REGISTRAR

25 OCT 2024


QUEENSLAND


Information

- Use this form to make a reinstatement application.
- Please read this form carefully. Please complete all relevant sections. Information that is missing or non-compliant with the relevant section of an Act or the Rules may result in the rejection of your form.
- Once your form has been processed the Industrial Registry will contact you and provide you with a sealed copy of your application.

Practice Direction 3 of 2021- ELECTRONIC FILING AND HARD COPIES OF DOCUMENTS. Documents which are longer than 30 pages in length must be supplied to the Industrial Registry in hard copy before it will be accepted for filing.

NOTETOTHE RESPONDENTEMPLOYER: You must file in the Industrial Registry and serve on the applicant a completed "Form 12A – Employer's response to application for reinstatement" within 14 days of receipt of this application.

Note: The applicant may file a Form 20 - Affidavit in support of the application.

For further information please contact the Industrial Registry on 1300 592 987 or via email at qirc.registry@qirc.qld.gov.au

For information on completing the application see the [Unfair Dismissal and Reinstatement Guide](#) located on our website at www.qirc.qld.gov.au

Applicant:	Cory Lea Shepherd

v

Respondent:	Queensland Health Logan Hospital

PLEASE NOTE: If there are more than two parties to this application, please complete a **Form 1 – Parties list** and file it with this form.

Application

This is an application to the Queensland Industrial Relations Commission pursuant to section 317 of the *Industrial Relations Act 2016*.

Is this application being made by an employee organisation?

☐ Yes

– Please complete the employee's details in 3 below and the Schedule 1 consent form

☒ No

1. Applicant

Name of applicant:	Mr Cory Lea Shepherd		
Name of contact person:			
Postal address:	104 158 Scarborough street		
	Suburb/Town Southport	Postcode 4215	
Phone number:		Fax number:	
Mobile number:	+61422438627		
Email address:	coryshepherd1@hotmail.com		

Does the applicant have a representative?

A representative might be a lawyer, a union, an agent or a family member or friend who will speak on behalf of the applicant. There is no requirement to have a representative.

☐ Yes - provide representative's details below and file a Form 33 or 34

☒ No

2. Applicant's representative

Organisation:			
Name of contact person:			
Postal address:			
	Suburb/Town	Postcode	
Phone number:		Fax number:	
Mobile number:			
Email address:			

3. Employee's details – Note: Please only complete this section if this application is being made by an employee organisation

Name:			
Postal address:			
	Suburb/Town	Postcode	
Phone number:		Fax number:	
Mobile number:			
Email address:			

4. Respondent

The applicant must serve a copy of this application on the respondent

Name of respondent:	Queensland Health Logan Hospital		
Name of contact person:	HR Consultant Faiza Firoz		
Postal address:	Unit 4, 3-5 University Drive		
	Suburb/Town	Meadowbrook	Postcode 4131
Phone number:	07 2891 5906	Fax number:	
Mobile number:			
Email address:	lbh_hr@health.qld.gov.au		

5. The employment

5.1 What was the commencement date of employment?	28 / 03 / 2019
5.2 What date was notification given of the dismissal?	09 / 10 / 2024
5.3 What date did the dismissal take effect?	08 / 10 / 2024
5.4 What position was held at the time of dismissal?	Administration officer
5.5 Which industrial instrument covered the employment at the time of dismissal?	
Hospital and Health Services General Employees (Queensland Health) Award - State 2015	

6. Decision sought

The Applicant seeks the following orders: (please tick all that apply)

- ☐ Reinstatement in [his/her] former position (or as nearly as is possible) without prejudice to the employee's former conditions of employment and remuneration lost between the date the dismissal took effect / / and the date of reinstatement; OR
- ☐ Re-employment in another position that the employer has available and that the Commission considers suitable.
- ☐ However, if the Commission considers reinstatement or re-employment would be impracticable, the Applicant seeks that the Commission make an order that the employer pay the employee an amount of compensation the Commission considers appropriate.

☒ Other orders sought.

An apology letter
6 months remuneration,
Reinstatement of employment of a position that is equivalent or greater position suitable.

4. Respondent

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Name of contact person:	HR Consultant Faiza Firoz		
Postal address:	Unit 4, 3-5 University Drive		
	Suburb/Town	Meadowbrook	Postcode 4131
Phone number:	07 2891 6906	Fax number:	
Mobile number:			
Email address:	lbh_hr@health.qld.gov.au		

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5.1 What was the commencement date of employment?	28 / 03 / 2019
5.2 What date was notification given of the dismissal?	09 / 10 / 2024
5.3 What date did the dismissal take effect?	08 / 10 / 2024
5.4 What position was held at the time of dismissal?	Administration officer
5.5 Which Industrial Instrument covered the employment at the time of dismissal?	Hospital and Health Services General Employees (Queensland Health) Award - State 2015

6. Decision sought

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- ☐ Re-employment in another position that the employer has available and that the Commission considers suitable.
- ☐ However, if the Commission considers reinstatement or re-employment would be impracticable, the Applicant seeks that the Commission make an order that the employer pay the employee an amount of compensation the Commission considers appropriate.



Other orders sought.

An apology letter

6 months remuneration.

Reinstatement of employment of a position that is equivalent or greater position suitable.

7. Are you making this application within 21 calendar days of your dismissal taking effect?

☒ Yes

☐ No - Please complete reasons below

Reasons for delay in filing application

1. *Not known (Note: If more than 3000 characters are required please attach a schedule)*

8. The Dismissal

8.1 What were the reasons for the dismissal, if any, given by the employer and why was the dismissal unfair?

Unfair Dismissal Statement

Reasons for Dismissal

According to Clause 9.6 (Abandonment of Employment) of the Hospital and Health Services General Employees (Queensland Health) Award - State 2015, an employee is considered to have abandoned their employment if they are absent for more than three continuous working days without employer consent and notification. I contest this interpretation, as I provided timely notifications and medical certificates regarding my absence prior to the expiration of my medical leave on October 7, 2024. Attachment LTR.

Notification of Absence

On July 15, 2024, I informed Ms. Taylor that updates regarding my absence would be communicated through Human Resources, as confirmed by WorkCover. There was no indication from my employer that I could not correspond in this manner. I maintained a right to disconnect from work while receiving treatment, yet I ensured my employer was updated on my situation. Attachment 2.

- Medical certificates were submitted to Human Resources and confirmed by WorkCover. Attachment 3.
- On September 18, 2024, WorkCover notified Human Resources of my claim.
- On September 20, 2024, Steven Johns acknowledged reviewing my WorkCover claim, which was concluded on that date.

The WorkCover claim, which confirms my status as an injured employee, was supported by multiple medical certificates. The denial of liability by WorkCover is noted in Attachment 4.

In response to the notification from Executive Steven Johns, I must highlight inaccuracies regarding leave dates and contacts, including the handling of my grandfather's funeral leave. Additionally, the information regarding my WorkCover claim is incorrect. My employer disregarded the medical documentation provided, despite being aware of my condition.

Notification Definition

I assert that the definition of notification in Clause 9.6 does not prohibit my doctor from submitting medical certificates on my behalf, nor does it prevent me from informing Ms. Taylor about the notifications sent to Human Resources via WorkCover. During my grievance with Ms. Taylor and Ms. Reece, I was not provided with alternative contact details and relied on WorkCover to communicate with Human Resources.

The medical certificates dated July 1, August 7, August 11, and September 8, 2024, were valid until October 7, 2024, and confirmed by WorkCover. Attachment 3. I communicated my intention to return to work on October 3, 2024, in response to a letter from Executive Director Anne Coccetti dated September 27, 2024. Attachment 5.

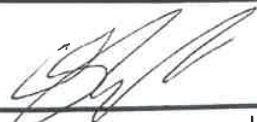
Unfair Dismissal Precedents

My situation parallels the cases of "Stevenson v Murdoch Community Services Inc" [2010] FCA 648 and "Sharpe v MCG Group Pty Ltd", where employees were unfairly dismissed despite providing medical evidence of their inability to work. In both instances, the courts found that employers had failed to consider medical certificates and had taken adverse action against employees based on their absences or communication.

In my case, Steven Johns has not acknowledged my notifications and medical evidence, leading to an unjust termination that appears to be retaliatory due to my claims against the department. Furthermore, the handling of my leave related to my grandfather's passing was mismanaged, with incorrect dates recorded.

Conclusion

I respectfully submit that my dismissal was unjust and did not consider the medical evidence provided. The lack of diligence, fairness and integrity required constitutes unfair dismissal, and I seek to be reinstated and 6 months remuneration, similar to Sharpe v MCG Group Pty Ltd [2010] FWA 2357 (Asbury C, 22 March 2010).

9. Signature of applicant or representative	
Signature:	
Name in full (please print):	Cory Lea Shepherd
Date:	25/10/2024

Schedule 1 – Consent form for employee organisation	
This consent form must be signed by the employee pursuant to s 317(3)(b).	
I:	
of:	
consent to the:	
of:	
making this application concerning my dismissal. The employee organisation's rules entitle it to represent my industrial interests.	
Dated at (place):	
on:	/ /
Employee's Signature:	



Enquiries to: Faiza Firoz
Consultant
Human Resources
Telephone: 07 2891 5910
Our Ref: K-CF24/3270

**Metro South
Health**

Logan and Beaudesert Health Service

Mr Cory Shepherd
Administration Officer
Switchboard Services
Logan Hospital

Dear Mr Shepherd

I refer to the letter from Ms Anne Coccetti, Executive Director, Logan and Beaudesert Health Service (**LBHS**), Metro South Health (**MSH**) dated 27 September 2024, in which she provided you with the opportunity to advise why MSH should not consider you have abandoned your employment as outlined under section 9.6 of the *Hospital and Health Service General Employees (Queensland Health) Award – State 2015 (the Award)*.

In Ms Coccetti's letter dated 27 September 2024, you were afforded a period of 7 days from the date of your receipt of that letter to provide a response as to why MSH should not consider you have abandoned your employment. I am now in receipt of your response, which was received by Human Resources, LBHS, MSH on 3 October 2024 (**Response**).

In accordance with section 31.2 of the MSH Human Resources Sub-Delegations Manual, I have been delegated the functions of the chief executive in relation to abandonment of employment matters.

I note you make the following submissions within your response:

- You confirmed your intention to return to work.
- You advised the "Industrial Relations Department" has notified MSH of your request for a review of WorkCover Queensland's decision to deny your Workers Compensation claim.
- You advised you have sent multiple pieces of correspondence to Ms Tammy Reece, Director, Health Information Management Service, Logan Hospital, MSH and Ms Chloe Taylor, Manager, Switchboard, Corporate Services, Logan Hospital, MSH that you need a break from 'her'.

I have given full and careful consideration of the reasons provided in your letter as to why I should not consider you have abandoned your employment. However, I do not accept you have provided reasonable grounds on the following basis:

- Your last day of attendance for a rostered shift was 3 June 2024. Subsequent to that, you accessed the following leave:
 - 7 June 2024 – Recreation leave in lieu of sick leave
 - 8 June 2024 – Sick leave and Recreation leave in lieu of sick leave
 - 9 June 2024 – Sick leave

ICARE² values



Quality healthcare every day

- 10 June 2024 – Leave without pay
- 11 and 12 June 2024 – Bereavement leave
- You were then placed on Leave without pay as you stopped attending your rostered shifts and you did not request to access your own leave balances.
- Human Resources have sought information from Ms Reece and Ms Taylor with whom you asserted you had multiple instances of contact. Ms Reece and Ms Taylor have confirmed the last correspondence they have received from you was on 15 May 2024 and 21 June 2024 respectively. Given this, I do not accept that you have been in regular contact with your workplace since your approved leave ceased in June.
- While you assert in your response that you intend to return to work, you have opted to provide no information regarding your intended return date. Additionally, you have failed to request for any form of paid or unpaid leave for the duration of your unapproved absence.
- While MSH has received correspondence from the Office of Industrial Relations regarding your application to review the decision made by WorkCover Queensland to deny your Workers Compensation claim, this does not remove your obligation to continue to communicate with your line manager or your employer.
- Given Ms Taylor has not received any correspondence from you since 21 June 2024, it is evident that you have not requested any form of paid or unpaid leave, nor have you provided any medical certificates to support your ongoing absence from the workplace. Given this, it is clear that your absence is unapproved and unauthorised. Additionally, it is clear that you have failed to maintain contact with your line manager and employer.

Clause 9.6 (Abandonment of Employment) of the [Hospital and Health Services General Employees \(Queensland Health\) Award – State 2015](#), states in part *'The absence of an employee from work for a continuous period exceeding 3 working days without the consent of the employer and without notification to the employer will be prima facie evidence that the employee has abandoned their employment.'*

You have not attended work since 3 June 2024, you had approved leave until 12 June 2024, and have since been absent without approval. I acknowledge that between June 2024 and 19 September 2024 you were awaiting the outcome of your WorkCover claim; however, you have not provided any reasonable excuse for your absence, nor have you requested approved leave. Therefore, I consider you are absent from duty without approved leave and without reasonable excuse and have abandoned your employment.

Noting that between June 2024 and 19 September 2024 you were awaiting the outcome of a WorkCover claim, I am nominating your separation date as 20 September 2024.

Return of MSH property

You are required to return any MSH property you have in your possession including your identification card and uniforms. Please return all such property to Ms Firoz at Unit 4, 3-5 University Drive, Meadowbrook QLD, 413 within seven (7) calendar days of receipt of this letter.

Human Rights

I acknowledge that my decision determining you have abandoned your employment may impact and potentially limit your human rights including the right to take part in public life, right to privacy and the right to reputation, which extends to protect professional relationships and reputation.

However, in my view, any limitation is demonstrably justified. This is because it is in the public interest in ensuring that employees comply with the Code of Conduct, and any employment legislation including for instance the Awards and Agreements relevant applicable to your

employment. I consider that this outweighs the limited potential impact on your human rights at this time.

Questions

If you have any questions in relation to the matters raised in this letter, please contact Ms Faiza Firoz, Consultant, Human Resources, LBHS, MSH on telephone (07) 2891 5910 or via email at LBH_HR@health.qld.gov.au.

Yours sincerely

A handwritten signature in black ink, appearing to read 'S. Johns'.

Steven Johns
A/Executive Director
Logan and Beaudesert Health Service
Metro South Health
8 / 10 / 2024



Chloe Work >



soon as possible. Kind regards,
Chloe

Mon, 15 Jul at 12:03 pm

Hi Chloe,

HR have a document that have
the dates I will not be in for work.

I will not be in this month. Thanks.

Regards,

Cory

Delivered

Hi Cory, Thanks for responding.
Can you confirm which HR email
address this was sent too as just
spoken to with Logan/Beaudesert
team and nothing has been
received. If you can please
provide me with this information
too or leave end date that would
be gratefully appreciated for
rostering purposes. Thanks and
take care of yourself, Chloe

Tue, 24 Sep at 11:16 am

Hi Cory. I hope you are well. I am
just letting you know that I sent
you an email on Friday 20.09.24



iMessage



heaps, Chloe

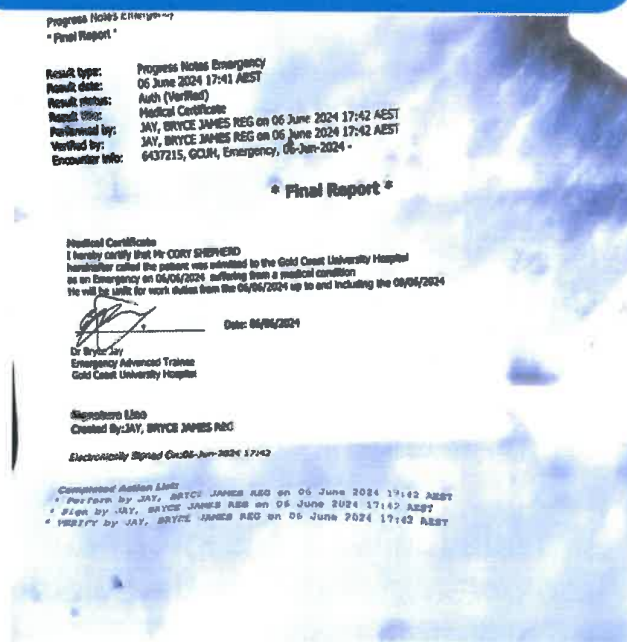
Fri, 7 Jun at 11:10 am

Hi Chloe,

I won't be able to come into work today and a few more days.

Refer to the medical certificate.

Thanks



BRYCE JAMES REG

Text Message • SMS

Hi Cory, no worries thanks for



iMessage





Chloe Work >



that would be great.

No worries, I will see what I can do 😊

Fri, 21 Jun at 1:29 pm

Hi Cory, hope you are well. I have sent you an email if you can kindly please respond as soon as possible today. Kind regards,
Chloe

Fri, 21 Jun at 5:38 pm

Hey Chloe,

I haven't been able to go through my emails but will do so over the weekend.

I am pretty exhausted following the past week and would like the rest of the week off. Thanks for understanding.

Regards,

Cory

No worries at all Cory, thanks for letting me know. Rest up, see you next week.



iMessage





Ellen Switchboard Lo... >

you to see if you are coming into work today? Your shift is from 15:00 - 23:00. Let me know if you need more time off work. Ellen

Mon, 17 Jun at 11:58 am

Hey Ellen,

The funeral is tomorrow and I'll need to leave today.

I will need to today and two more days. Thanks for understanding.

Cory

Im so sorry.

Thats ok. Thank you for letting me know. Are you able to provide a funeral notice? We just need something to submit to payroll, so that we can put you down for bereavement leave for last week.

Let me know of you need anything else as well.

Fri, 21 Jun at 3:33 am

Hey Ellen,

You have no issues



Text Message • SMS





Ellen Switchboard Lo... >

Cory

Im so sorry.

Thats ok. Thank you for letting me know. Are you able to provide a funeral notice? We just need something to submit to payroll, so that we can put you down for bereavement leave for last week.

Let me know of you need anything else as well.

Fri, 21 Jun at 3:33 am

Hey Ellen,

Yes I have no issues conversations with my mother grandmother or my shared location.

I have just arrived home so will call switch as I'm looking at the roster and I'm on for 6am. I just can't cover it.

I was not paying attention while asking for the additional days off work but having to driving the last 7 hours I wouldn't be able to cover today.



Text Message • SMS





Ellen Switchboard Lo... >

Let me know if you need
anything else as well.

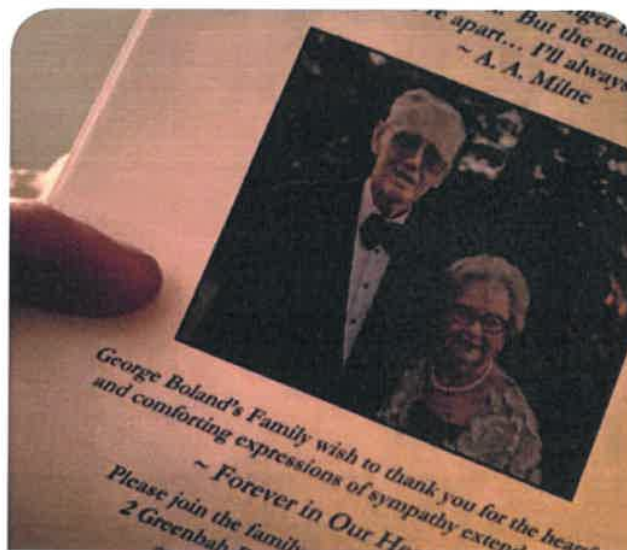
Fri, 21 Jun at 3:33 am

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Yes I have no issues
conversations with my mother
grandmother or my shared
location.

I have just arrived home so will
call switch as I'm looking at the
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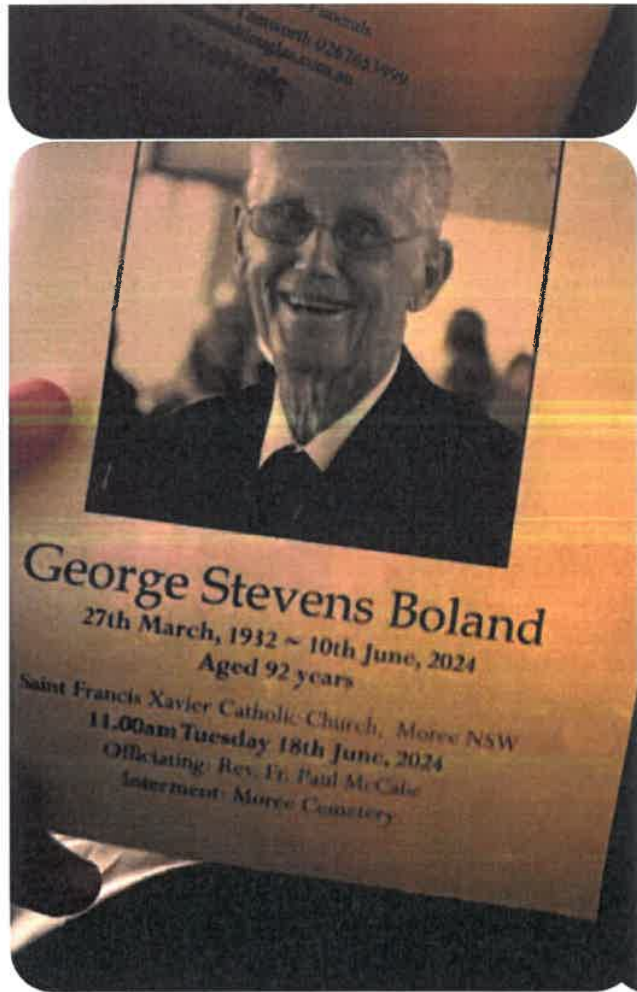
Text Message • SMS



1:34



Ellen Switchboard Lo... >



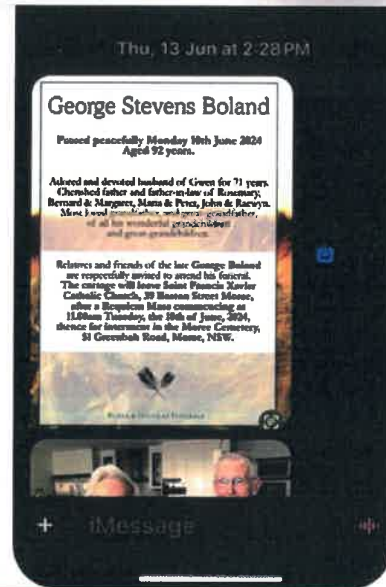
Text Message • SMS



1:34



Ellen Switchboard Lo... >



I'm sorry for the very early messages I will also send an email to switch before I sleep

Fri, 21 Jun at 10:20 am

Hey Cory, thanks for letting me know. I hope the funeral went ok as they can go.

I have only just seen your messages as im not on call this week, Chloe is. I have forwarded on this information to her. Are you able to please advise her if you are working your shifts for tomorrow and Sunday or if you require additional time off for these to. Ellen

Wed, 26 Jun at 12:33 am



Text Message • SMS



Work capacity certificate

Workers' Compensation and Rehabilitation Act 2003

IMPORTANT INFORMATION: Work is an important part of recovery. In most cases an early return to work (or remaining at work) is beneficial for health and wellbeing. The treating practitioner's guidance increases the likelihood of positive return to work outcomes. A worker receiving continued support is three times more likely to regain their capacity to work.

Consider the health benefits of work when certifying the patient's capacity

Part A - Patient details

Name Cory Shepherd

Mobile number 0422438627

Occupation (if known) Admin worker

Claim number S23LW142013

Date of Birth 11/01/1991

☐ New claim

☐ Claim is report only

Patient's employer Qld Health

Part B - Injury details

Date of examination 11/08/2024

Patient's stated date of injury 18/06/2024

Patient was first seen at this practice/hospital for this injury/disease on 01/07/2024

The patient is/was suffering from (List all work-related diagnoses. If symptoms only, tick "Provisional diagnosis")
Provisional diagnosis
Patient's stated mechanism of injury harassment at work

anxiety, stress

Is this consistent with your clinical findings?
☒ Yes ☐ Unclear

Describe mechanism in detail
Pre-existing factors or condition
aggravated (if not previously supplied)

ongoing breaking of workplace rules by bosses, victimizing him

Part C - Treatment plan

Patient requires/d treatment from 08/09/2024 to 06/10/2024

to be reviewed again on 06/10/2024

☐ No further review

Treatment needs time away from this environment

I have prescribed medication that may impede safe work, travel or cognitive function ☐ No ☐ Yes

Referrals ☒ Diagnostic ☐ Allied Health ☐ Name/discipline
Specialist/Gp Psychiatrist

Details (specify)

Part D - Capacity for work (choose from one of three options)

☐ The certified injury does not prevent a return to pre-injury duties. Do not complete part E. Go to Part F.

☐ If suitable duties available, can return to some form of work from

☒ No functional capacity for any type of work until

Complete the below section if you certified no functional capacity for any type of work

If no functional capacity, state why? (if no capacity for more than 7 days, the insurer may contact you to obtain more information)

stressed and anxious.

Estimated time to return to some form of work duties
unknown

Estimated time to return to full duties
unknown

Part E - Functional ability

(Optional for emergency medical practitioners/dental practitioners. Nurse practitioners not to complete.)

No change since last certificate

Certification should be based on what CAN be done, NOT available duties. Consider what the patient can do, either at work or home.

Function/task (patient's usual functional ability)

Is functional ability affected by injury/condition?
No Yes Note any restrictions (if relevant)

What patient can do (if "yes" is selected)

Lower limb

No

Upper limb

No

Hand function

No

Spinal function

No

Cognition/psychosocial functioning

No

Driving a car

No

Operating machinery/heavy vehicle

No

Manual tasks

No

Other

No

Part F - Rehabilitation at work - return to work plan

(Optional for emergency medical practitioners/dental practitioners. Nurse practitioners not to complete.)

What workplace modifications are required to facilitate return to work? (e.g. work site assessment, psychosocial considerations)

Other considerations or factors that may affect recovery (the insurer can arrange appropriate support)

☐ I require a suitable duties program to be provided to me for approval

I have discussed injury requirements and return to work with the patient and

☐ Employer

☐ Insurer

☐ Rehabilitation provider

Part G - Medical/dental/nurse practitioner details and statement (or use practice/hospital stamp)

I have discussed the information contained in this certificate with the patient. I have provided the clinical information in this certificate.

Name Peter Hawes

Practice/hospital Our Medical Ashmore

Postal Address

566 Olsen Avenue, Ashmore

QLD 4214

Email admin@ourmedicalashmore.com.au

Phone 0756475000 Date 08/09/2024

Signature

Further information www.worksafe.qld.gov.au/medicalsupport

All enquiries (medical/dental/nurse practitioner, patient, employer) 1300 362 128

Under the Workers' Compensation and Rehabilitation Act 2003 (the Act), the workers' compensation insurer is authorised to collect the information on this form to process the claimant's application for compensation. The information contained in this form may be disclosed to the claimant's employer, another insurer, medical or allied health providers or any other workers' compensation authority in any jurisdiction. The claimant may be contacted by the insurer, and the insurer may contact the claimant's employer and any other medical, allied health or rehabilitation provider about the injury. This form was approved by the Workers' Compensation Regulator on 31 May 2016, pursuant to section 586 of the Act. © State of Queensland (Queensland Treasury) 2016



Work capacity certificate - workers' compensation

Workers' Compensation and Rehabilitation Act 2003

IMPORTANT INFORMATION Work is an important part of recovery. In most cases, practitioner's guidance increases the likelihood of positive return to work outcomes. Consider the health benefits of work when certifying the patient's capacity.

early return to work (or remaining at work) is beneficial for health and wellbeing. The treating worker receiving continued support is three times more likely to regain their capacity to work.

Part A - Patient details

Name Cory Shepherd
Mobile number 0422438627

Claim number S23LW14203

Date of Birth 11/01/1991

☐ Claim is report only

Occupation (if known) Admin worker

Patient's employer Qld Health

Part B - Injury details

Date of examination 01/07/2024

Patient's stated date of injury 18/06/2024

Patient was first seen at this practice/hospital for this injury/disease on 01/07/2024

The patient is/was suffering from (List all work-related diagnoses, if symptoms only, tick "Provisional diagnosis") ☐ Provisional diagnosis
Patient's stated mechanism of injury harrasment at work

anxiety, stress

Is this consistent with your clinical findings?
☒ Yes ☐ Unclear

Describe mechanism in detail

Pre-existing factors or condition

ongoing breaking of workplace rules by bosses, victimizing him

aggravated (if not previously supplied)

Part C - Treatment plan

Patient requires/d treatment from 01/07/2024 to 09/08/2024 to be reviewed again on 09/08/2024

☐ No further review

Treatment needs time away from this environment

I have prescribed medication that may impede safe work, travel or cognitive function ☐ No ☐ Yes

Referrals ☐ Diagnostic ☐ Allied Health ☐ Specialist/GP

Name/discipline

Details (specify)

Part D - Capacity for work (choose from one of three options)

☐ The certified injury does not prevent a return to pre-injury duties. Do not complete part E. Go to Part F.

☐ If suitable duties available, can return to some form of work from

☒ No functional capacity for any type of work until

Complete the below section if you certified no functional capacity for any type of work
If no functional capacity, state why? (if no capacity for more than 7 days, the insurer may contact you to obtain more information)

Estimated time to return to some form of work duties unknown

Estimated time to return to full duties unknown

Part E - Functional ability

(Optional for emergency medical practitioners/dental practitioners. Nurse practitioners not to complete.)

No change since last certificate

Certification should be based on what CAN be done, NOT available duties. Consider what the patient can do, either at work or home.

Function/task (patient's usual functional ability)

Is functional ability affected by injury/condition?

No Yes Note any restrictions (if relevant)

What patient can do (if "yes" is selected)

Lower limb

No

Upper limb

No

Hand function

No

Spinal function

No

Cognition/psychosocial functioning

No

Driving a car

No

Operating machinery/heavy vehicle

No

Manual tasks

No

Other

No

Part F - Rehabilitation at work - return to work plan

(Optional for emergency medical practitioners/dental practitioners. Nurse practitioners not to complete.)

What workplace modifications are required to facilitate return to work? (e.g. work site assessment, psychosocial considerations)

Other considerations or factors that may affect recovery (the insurer can arrange appropriate support)

☐ I require a suitable duties program to be provided to me for approval

I have discussed injury requirements and return to work with the patient and

☐ Employer

☐ Insurer

☐ Rehabilitation provider

Part G - Medical/dental/nurse practitioner details and statement (or use practice/hospital stamp)

I have discussed the information contained in this certificate with the patient. I have provided the clinical information in this certificate.

Name Ki Pang

Practice/hospital Our Medical Ashmore

Postal Address

588 Olsen Avenue, Ashmore, QLD 4214

Further information www.worksafe.qld.gov.au/medicalsupport

Enquiries (medical/dental/nurse practitioner, patient, employer) 130 362 124

Under the Workers' Compensation and Rehabilitation Act 2003 (the Act), the workers' compensation insurer is responsible for providing the information on this form to the claimant's application for compensation. The information contained in this form may be disclosed to the claimant's compensation authority or any other workers' compensation authority in the jurisdiction. The claimant may be contacted by the insurer, another insurer, medical or allied health professional, or other medical, allied health or rehabilitation provider about the injury. This form was approved by the Workers' Compensation Regulator on 31 May 2016.

AE016/15/23

686 of the Act © State of Queensland (Queensland Treasury) 2016

Work capacity certificate – workers' compensation

Workers' Compensation and Rehabilitation Act 2003

IMPORTANT INFORMATION: Work is an important part of recovery. In most cases an early return to work (or remaining at work) is beneficial for health and well-being. Practitioner's guidance increases the likelihood of positive return to work outcomes. A worker receiving continued support is three times more likely to regain their capacity. Consider the health benefits of work when certifying the patient's capacity.

Part A - Patient details

Name: Cory Shepherd
 Mobile number: 0422438627
 Occupation (if known): Admin worker
 Claim number: S33LW142013
 Date of Birth: 11/01/1991
☐ New claim
☒ Claim is report

Part B - Injury details

Date of examination: 11/08/2024
 Patient's stated date of injury: 18/06/2024
 Patient was first seen at this practice/hospital for this injury/disease on: 01/07/2024
 The patient is/was suffering from (List all work-related diagnoses. If symptoms only, tick "Provisional diagnosis") ☐ Provisional diagnosis: anxiety, stress
 Patient's stated mechanism of injury: harassment at work

Describe mechanism in detail: ongoing breaking of workplace rules by bosses, victimizing him
 Pre-existing factors or condition aggravated (if not previously supplied):
 Is this consistent with your clinical findings?
☒ Yes ☐ Unclear

Part C - Treatment plan

Patient requires/d treatment from: 08/09/2024 to 06/10/2024 to be reviewed again on: 06/10/2024
 Treatment needs time away from this environment
 I have prescribed medication that may impede safe work, travel or cognitive function ☐ No ☐ Yes
☐ No further review

Referrals: ☒ Diagnostic ☐ Allied Health ☐ Name/discipline: Psychiatrist
 Specialist/GP: Details (specify):

Part D - Capacity for work

(choose from one of three options)
☐ The certified injury does not prevent a return to pre-injury duties. Do not complete part E. Go to Part F.
☐ If suitable duties available, can return to some form of work from
☒ No functional capacity for any type of work until

Complete the below section if you certified no functional capacity for any type of work
 If no functional capacity, state why? (if no capacity for more than 7 days, the insurer may contact you to obtain more information)
 stressed and anxious.
 Estimated time to return to some form of work duties: unknown
 Estimated time to return to full duties: unknown

Part E - Functional ability

(Optional for emergency medical practitioners/dental practitioners. Nurse practitioners not to complete.) No change since last certificate
 Certification should be based on what CAN be done, NOT available duties. Consider what the patient can do, either at work or home.

Function/task (patient's usual functional ability)	Is functional ability affected by injury/condition?	What patient can do (if "yes" is selected)
Lower limb	No	
Upper limb	No	
Hand function	No	
Spinal function	No	
Cognition/psychosocial functioning	No	
Driving a car	No	
Operating machinery/heavy vehicle	No	
Manual tasks	No	
Other	No	

Part F - Rehabilitation at work - return to work plan

(Optional for emergency medical practitioners/dental practitioners. Nurse practitioners not to complete.)
 What workplace modifications are required to facilitate return to work? (e.g. work site assessment, psychosocial considerations)
 Other considerations or factors that may affect recovery (the insurer can arrange appropriate support):

I require a suitable duties program to be provided to me for approval
 We have discussed injury requirements and return to work with the patient and ☐ Employer ☐ Insurer ☐ Rehabilitation
 I have discussed injury requirements and return to work with the patient and ☐ Employer ☐ Insurer ☐ Rehabilitation

G - Medical/dental/nurse practitioner details and statement (or use practice/hospital stamp)

discussed the information contained in this certificate with the patient. I have provided the clinical information in this certificate.
 Peter Hawes
 Hospital: Our Medical Ashmore
 Address: 14 Avenue, Ashmore
 Email: admin@ourmedicalashmore.com.au
 Phone: 0756475000
 Date: 08/09/2024
 Signature: [Signature]

Information: www.worksafe.qld.gov.au/medicalsupport
 (medical/dental/nurse practitioner, patient, employer) 1300 362 128

Work capacity certificate - workers' compensation

Form 132M - Version 1

Workers' Compensation and Rehabilitation Act 2003

IMPORTANT INFORMATION: Work is an important part of recovery. In most cases an early return to work (or remaining at work) is beneficial for health and wellbeing. The treating practitioner's guidance increases the likelihood of positive return to work outcomes. A worker receiving continued support is three times more likely to regain their capacity to work.

Consider the health benefits of work when certifying the patient's capacity.

Part A - Patient details

Name: Cory Shepherd Date of Birth: 11/01/1991
Mobile number: 0422438627 Claim number: S23LW142013 ☐ New claim ☐ Claim is report only
Occupation (if known): Admin worker Patient's employer: Qld Health

Part B - Injury details

Date of examination: 11/08/2024 Patient's stated date of injury: 18/06/2024 Patient was first seen at this practice/hospital for this injury/disease on: 01/07/2024

The patient is/was suffering from (List all work-related diagnoses): anxiety, stress

If symptoms only, tick "Provisional diagnosis" ☐ Provisional diagnosis

Patient's stated mechanism of injury: harassment at work

Is this consistent with your clinical findings?

☒ Yes ☐ Unclear

Describe mechanism in detail: ongoing breaking of workplace rules by bosses, victimizing him

Pre-existing factors or condition

aggravated (if not previously supplied)

Part C - Treatment plan

Patient requires/d treatment from: 11/08/2024 to: 08/09/2024 to be reviewed again on: 08/09/2024 ☐ No further review

Treatment needs time away from this environment

I have prescribed medication that may impede safe work, travel or cognitive function ☐ No ☐ Yes

Referrals ☐ Diagnostic ☐ Allied Health ☐ Name/discipline: Details (specify)

Specialist/GP

Part D - Capacity for work (choose from one of three options)

☐ The certified injury does not prevent a return to pre-injury duties. Do not complete Part E. Go to Part F. ☐ If suitable duties available, can return to some form of work from ☒ No functional capacity for any type of work until 8/9/24

Complete the below section if you certified no functional capacity for any type of work

If no functional capacity, state why? (if no capacity for more than 7 days, the insurer may contact you to obtain more information)

stressed and anxious,

Estimated time to return to some form of work duties: unknown

Estimated time to return to full duties: unknown

Part E - Functional ability

(Optional for emergency medical practitioners/dental practitioners. Nurse practitioners not to complete.) No change since last certificate

Certification should be based on what CAN be done, NOT available duties. Consider what the patient can do, either at work or home.

Function/task (patient's usual functional ability)	Is functional ability affected by injury/condition?	What patient can do (if "yes" is selected)
	No Yes Note any restrictions (if relevant)	
Lower limb	No	
Upper limb	No	
Hand function	No	
Spinal function	No	
Cognition/psychosocial functioning	No	
Driving a car	No	
Operating machinery/heavy vehicle	No	
Manual tasks	No	
Other	No	

Part F - Rehabilitation at work - return to work plan

(Optional for emergency medical practitioners/dental practitioners. Nurse practitioners not to complete.)

What workplace modifications are required to facilitate return to work? (e.g. work site assessment, psychosocial considerations)

Other considerations or factors that may affect recovery (the insurer can arrange appropriate support)

I require a suitable duties program to be provided to me for approval
have discussed injury requirements and return to work with the patient and ☐ Employer ☐ Insurer ☐ Rehabilitation provider

Part G - Medical/dental/nurse practitioner details and statement (or use practice/hospital stamp)

I have discussed the information contained in this certificate with the patient. I have provided the clinical information in this certificate.

Name: Peter Hawes
Practice/hospital: Our Medical Ashmore
Postal Address:
16 Olsen Avenue, Ashmore
QLD 4214

Email: admin@ourmedicalashmore.com.au
Phone: 0756475000 Date: 11/08/2024
Signature: [Signature]

Further information: www.worksafe.qld.gov.au/medicalsupport
enquiries (medical/dental/nurse practitioner, patient, employer) 1300 362 128

Under the Workers' Compensation and Rehabilitation Act 2003 (the Act), the workers' compensation insurer is authorised to collect the information on this form to process the claimant's application for compensation. The information contained in this form may be disclosed to the claimant's employer, another insurer, medical or allied health providers or any other workers' compensation authority in any jurisdiction. The claimant may be contacted by the insurer, and the insurer may contact the claimant's employer and any other medical, allied health or rehabilitation provider about the injury. This form was approved by the Workers' Compensation Regulator on 31 May 2018, pursuant to section 585 of the Act. © State of Queensland (Queensland Treasury) 2016



Fw: Correspondence from the Executive Director, Logan and Beaudesert Health Service, Metro South Health

LBH_HR

Cory Shepherd

, coryshepherd1@hotmail.com

Wed, 9 Oct 2024, 4:10 pm

LTR_Confirmation of Abandonment of Employment_Cory Shepherd.pdf

Good afternoon Mr Shepherd,

I have attempted to call you this afternoon via your mobile phone number, however, was unable to speak with you.

Please find attached correspondence from Mr Steven Johns, Acting Executive Director, Logan and Beaudesert Health Service, Metro South Health regarding your employment at Logan Hospital.

If you have any questions regarding this letter, please contact me on telephone (07) 2891 5910 or via reply email.

Kind regards,

Faiza Firoz GCertEmpRel, BBus (She/Her)

HR Consultant

Human Resources

Logan and Beaudesert Health Services

Unit 4, 3-5 University Drive, Meadowbrook QLD 4131

[Metro South Health](#) |   

e. faiza.firoz@health.qld.gov.au | [Chat on Teams](#)

e. lbh_hr@health.qld.gov.au

p. 07 2891 5906 | Mon - Thurs

Metro South Health recognises and pays respect to the traditional custodians of the land and waters – the Yugambeh, Quandamooka, Jaggera, Ugarapul, and Turrbal peoples – and to Elders, past, present, and emerging.

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only the views of the sender and not the views of the Queensland Government.

Queensland Health carries out monitoring, scanning and blocking of emails and attachments sent from or to addresses within Queensland Health for the purposes of operating, protecting, maintaining and ensuring appropriate use of its computer network.

From: Cory Shepherd
To: LBH_HR , Cory Shepherd
Date: Fri, 11 Oct 2024, 3:15 pm

Hi Faiza,

I am writing to contest HR's and both executives attempting to accuse me of abandonment of employment. I will seek legal counsel due to disagreements with multiple aspects of this letter, such as the dates and the fact that I am a protected employee who has provided a work capacity certificate. I am currently undergoing medical treatment with an upcoming psychiatric appointment, which can be confirmed as of last month. I fully intend to file both stop harassment and bullying case and employment protection case to industrial relations against Human Resources if this continues. I believe this letter has been issued without proper diligence and due process, aiming to avoid overturning liability.

Currently, the industrial relations department has accepted the review, which I seek to overturn the liability factor. This does not mean that I am no longer an employee without an injury that should be denied any leave. Documents have been supplied so leave and payments must be actioned. The breach is with my employer not paying my entitlements yet continue to do so.

Throughout this process, I have communicated through my doctor and WorkCover, and QLD Health has been given updates at every step. However, Human Resources have purposely delayed and coerced the outcome of the WorkCover claim, with correspondence twice exceeding a month over the 5 days allowed.

Please let me know if you would like an update on my medical treatment. However, I cannot follow the directive in this letter as it breaches the Fair Work Act, Industrial Relations Act, Human Rights, and the EB11 HHS agreement. There are general protections for employees suffering from an injury, and although the review process will seek clarification on liability, WorkCover has given QLD Health an outcome letter and correspondence acknowledging a 'personal injury' while making no accommodations for me and disregarding any injury or work capacity certificates supplied to Human Resources. I find this letter disrespectful to my dignity and health.

I also find it extremely offensive and inappropriate to include the fact that I took leave when my grandfather died in this letter or in making any decision or directive regarding employment abandonment following a communication to return to work. This letter is antagonistic and lacks legal justification, which would understandably trigger anyone.

I also request again, following many emails to Ms. Taylor, Ms. Reece, Ms. Stibbard, and Amy Mo from WorkCover, that fatigue pay be issued, referencing the outcome of the WorkCover notice to be paid overtime when allowing an employee less than 10 hours between shifts. Chloe allowed me only 7 hours, not including travel time. Not issuing payments and entitlements constitutes wage theft, and I have already submitted a crime and corruption complaint against QLD Health employees.

Additionally, I formally request that my leave be processed and that HR and executives respect their legal,

ethical, and contractual obligations and responsibilities prior to any legal action.

Thank you for your time. Please leave a voicemail when calling, and I will return your phone call. I have not received any calls from the contact number provided here. I have been using WorkCover and my doctor to communicate with my employer, essentially through a third party, to provide updates. As a relevant contact has not been provided to me following my grievances with Ms. Reese and Ms. Taylor. I also note the false dates of contact included in this letter. I can supply additional evidence in response to this, but it has been advised to Ms Taylor that HR would receive information and updates through WorkCover, including a work capacity certificate. Therefore, Ms. Taylor or HR choosing to ignore communication does not meet the criteria for abandonment of employment of an injured employee unable to communicate effectively.

I also accept communication via telephone and email, though I prefer email from those who do not seek to antagonize my injury or cause mental or financial harm. If you wish to schedule a time to contact me by phone, you can reach me at 0422 438 627.

Regards,

Cory

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Cory Shepherd

Info M

Thu, 24 Oct 2024, 10:09 am

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3 Emails

Re: Cory Shepherd Employment matters -S23LW142013

Karen Steenberg
Cory Shepherd
Fri, 11 Oct 2024, 10:06 am

Good morning Cory,

Workcover made a decision on your claim on the 13 September 2024. Since this time no further correspondence has been received apart from the Regulator (QComp) requesting a copy of your file to assist with your appeal.

If you have concerns regarding your employment status, please reach out to Department of Industrial Relations. WorkCover cannot assist with employment conditions, status etc.

Kind regards



Karen Steenberg
Customer Manager

P: 07 3006 8573

E: karen.steenberg@workcoverqld.com.au

[worksafe.qld.gov.au](https://www.worksafe.qld.gov.au)

Cory Shepherd
Karen Steenberg
Fri, 11 Oct 2024, 1:40 pm

a. There is one occasion between 17 and 18 March 2024 that MSHHS failed to comply with their rostering guideline as they have only allowed 7 hours between shifts, where they are required to allow 10 hours between shifts.

On review of the information available to WorkCover Queensland I accept that you have suffered a personal injury and that your employment has been a significant contributing factor. When considering if you have suffered an injury as outlined in section 32 of the Act, I must also consider the exclusionary Section 32(5)(a) and (b) to your application for compensation. Whilst I acknowledge that MSHHS has failed to follow rostering guideline on one occasion, in a holistic view the other factors have been managed in line with MSHHS policies. The e failure to follow roster guidelines on one occasion is a blemish in their management action. It is my determination that the actions taken by your employer was reasonable and undertaken in a reasonable way. This means that I will apply the exclusionary Section 32(5)(a) and (b) to your application for compensation.

This means that WorkCover Queensland is unable to accept this claim

Workcover accept I email and request Chloe Taylor requesting fatigue pay due to inadequate rest hours between shifts and disagreements over rostering protocols. I have not received any overtime or compensation for completing work without adequate rest as per policy. Payment for overtime on March 18, 2024, has been withheld. To manage my fatigue, as advised by Qld Health, I had to take my own leave on March 19, 2024

280 Adelaide Street (GPO Box 2459) Brisbane Qld 4001 worksafe.qld.gov.au
p: 07 3006 8493 f: 1300 651 387 e: Amy.Mo@workcoverqld.com.au
ABN 40 577 162 756

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S23LW142013

Work capacity certificate
Workers' Compensation and Rehabilitation Act 2003
IMPORTANT INFORMATION: Work is an important part of recovery. In most cases an early return to work (or remaining at work) is beneficial for health and wellbeing. The treating practitioner's guidance increases the likelihood of positive return to work outcomes. A worker receiving continued support is three times more likely to regain their capacity to work.
Consider the health benefits of work when certifying the patient's capacity.

Part A - Patient details
Name: Cory Shepherd
Mobile number: 0422438827
Occupation (if known): Admin worker
Claim number: S23LW142013
Date of Birth: 11/01/1991
Patient's employer: Qld Health
☐ New claim
☐ Claim is report only

Part B - Injury details
Date of examination: 11/08/2024
Patient's stated date of injury: 18/08/2024
Patient was first seen at this practice/hospital for this injury/disease on: 01/07/2024
The patient is/was suffering from (list all work-related diagnoses if symptoms only, tick "Provisional diagnosis")
Patient's stated mechanism of injury: harassment at work
anxiety, stress
Is this consistent with your clinical findings?
☒ Yes ☐ Unclear
base66 victimizing him

Describe mechanism in detail
Pre-existing factors or condition
aggravated (not previously supplied)

ongoing breaking of workplace rules by [redacted]

Part C - Treatment plan
Patient required treatment from 08/09/2024 to 06/10/2024 to be reviewed again on 06/10/2024 ☐ No further review
Treatment made time away from this environment ☐ No ☐ Yes
I have prescribed medication that may impede safe work, travel or cognitive function ☐ No ☐ Yes
Details (specify)

Referrals: Diagnostic ☐ Allied Health ☐ Name/discipline
Specialist/GP Psychiatrist

Part D - Capacity for work (choose from one of three options)
☐ The certified injury does not prevent a return to pre-injury duties. Do not complete part E. Go to Part F.
☐ If suitable duties available, can return to some form of work from [redacted]
☒ No functional capacity for any type of work until [redacted]

Complete the below section if you certified no functional capacity for any type of work
If no functional capacity, state why? (if no capacity for more than 7 days, the insurer may contact you to obtain more information)
stressed and anxious. Estimated time to return to some form of work duties unknown Estimated time to return to full duties unknown

Part E - Functional ability
(Optional for emergency medical practitioners/dental practitioners. Nurse practitioners not to complete.) No change since last certificate
Certification should be based on what CAN be done, NOT available duties. Consider what the patient can do, either at work or home.

Function/task (patient's usual functional ability)	Is functional ability affected by injury/condition?	What patient can do (if "yes" is selected)
Lower limb	No	
Upper limb	No	
Hand function	No	
Spinal function	No	
Cognition/psychosocial functioning	No	
Driving a car	No	
Operating machinery/heavy vehicle	No	
Manual tasks	No	
Other	No	

Part F - Rehabilitation at work - return to work plan
(Optional for emergency medical practitioners/dental practitioners. Nurse practitioners not to complete.)
What workplace modifications are required to facilitate return to work? (e.g. work site assessment, psychosocial considerations)
Other considerations or factors that may affect recovery (the insurer can arrange appropriate support)
☐ I require a suitable duties program to be provided to me for approval
I have discussed injury requirements and return to work with the patient and [redacted] Employer ☐ Insurer ☐ Rehabilitation provider

Part G - Medical/dental/nurse practitioner details and statement (or use practice/hospital stamp)
I have discussed the information contained in this certificate with the patient. I have provided the clinical information in this certificate.
Name Peter Hawes Email admin@ourmedicalashmore.com.au
Practice/hospital Our Medical Ashmore Phone 0756475000 Date 08/09/2024
Postal Address Signature [redacted]
566 Olsen Avenue, Ashmore
QLD 4214

Further information www.worksafe.qld.gov.au/medicalsupport
All enquiries (medical/dental/nurse practitioner, patient, employer) 1300 362 128

Under the Workers' Compensation and Rehabilitation Act 2003 (the Act), the workers' compensation insurer is authorised to collect the information on this form to process the claimant's application for compensation. The information contained in this form may be disclosed to the claimant's employer, another insurer, medical or allied health providers or any other workers' compensation authority in any jurisdiction. The claimant may be contacted by the insurer, and the insurer may contact the claimant's employer and any other medical, allied health or rehabilitation provider about the injury. This form was approved by the Workers' Compensation Regulator on 31 May 2015, pursuant to section 586 of the Act. © State of Queensland (Queensland Treasury) 2016

Queensland Government

Hi Karen,

I am seeking confirmation that all documents, including the worker's capacity certificates and my communications, were provided to my employer during the WorkCover process. The information I submitted was then forwarded to WorkCover for Queensland Health to review and respond to

until the claim's outcome.

Additionally, the claim was denied due to liability issues, not because of the documents provided by the doctor. I specifically need confirmation that my employer received the outcome letter in which WorkCover states the acceptance of 'a personal injury.' Which in the work capacity certificate attached outlines that I was of incapacity until the 6th October 2024.

I request confirmation that both of the above documents were given to my employer without the personal edits, such as the highlighted information and orange text I have made specifically for OIR review. QLD Health has stated that there was no reasonable excuse for my absence and non-attendance at the workplace, requesting that I return identification and alleging that I have abandoned my duties. There has been no acknowledgment of any injury or ongoing treatment.

The purpose of my letter is to confirm this information. Thank you for your assistance with the matter as I have given my intention to return to work yet I am now to face the new dilemma when giving my intentions.

Kind regards,

Cory

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From Karen Steenberg karen.steenberg@workcoverqld.com.au
to Cory Shepherd coryshepherd1@hotmail.com
Date Fri, 11 Oct 2024, 3:30 pm

Good afternoon Cory,
Sorry I missed your call.

I can confirm that your employer has received a copy of the below medical certificate and has also been advised of the claim determination outcome.

Kind regards



Karen Steenberg
Customer Manager

P: 07 3006 8573
E: karen.steenberg@workcoverqld.com.au



Cory Shepherd
Karen Steenberg
Fri, 11 Oct 2024, 4:07 pm

Hi Karen,

Thank you for getting back to me. Enjoy your weekend.

Kind regards,

Cory

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4 Emails

